

CV-26-001562 AMAYA, SALVINO vs DOCTORS MEDICAL CENTER OF MODESTO INC - Defendant's Amended Petition to Compel Arbitration and to Stay Action Pending Completion of Arbitration Proceeding - HEARING REQUIRED.

County: stanislaus

Division: Civil Law and Motion

Department: 21

Hearing date: 2012-04-02

Motion: The Court is inclined to enforce the arbitration clause based on Plaintiff's stipulation on some overlapping claims in a different, related case. Because this is based on post-briefing events, I need the parties' assistance. Procedural issues: The pleadings in this case concluded with an authorized sur-reply by Plaintiff on August 12, 2026. In case CV-26-4037 involving the same parties, the matter has been ordered stayed by stipulation. This order was made by Judge David Hood on August 19, 2026 based on a stipulation signed on August 18 by Plaintiff's counsel in that case, Starpoint, LC. That case covers discrimination and retaliation-based claims and also alleged a violation of Business and Professions Code section 17200. Further, the complaint asks for unpaid wages as a portion of damages. Plaintiff expressly agreed that the Collective Bargaining Agreement controlled and that agreement had a mandatory arbitration clause, and that Plaintiff had signed an arbitration agreement on March 8, 2018. This stipulation appears binding on Plaintiff and defeats many of his arguments in this case. In case CV-26-5535, Plaintiff is represented on nearly identical claims by MKEQUITYLEGAL, P.C. That case is facing a potential demurrer. In this case, CV-26-1562, Plaintiff is represented by The Myers Law Group, APC and the operative First Amended Complaint is primarily a wage and hour complaint. Plaintiff's election to arbitrate in case CV-26-4037 is binding on those claims, including the alleged violation of Business and Professions Code section 17200 and unpaid wages. Further, his concession of being bound by the agreements probably estops him from arguing that the agreement was not made or is void. If the Court reached the merits, the likely outcome would be the same. A party seeking to compel arbitration bears the burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413 [moving party must establish agreement to arbitrate].) If that burden is met, the opposing party bears the burden of proving a defense to enforcement, such as unconscionability. (Pinnacle Museum Tower Assn. v. Pinnacle Market Dev. (US), LLC (2012) 55 Cal.4th 223, 236 [burden shifts to opposing party to prove defense].) Here, a valid agreement to arbitrate appears to exist. Plaintiff's argument in the surreply that the terms of the arbitration cannot be discerned given Defendant's unusual choices throughout this litigation might carry more weight had there not been an agreement to arbitrate under agreed-upon terms in CV-26-4037.

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 90975fe33b70dbfb2185376df3a3ffb99be56b67dd247cd7fc3950d30e9aaa83

CV-26-001562 - AMAYA, SALVINO vs DOCTORS MEDICAL CENTER OF MODESTO INC - Defendant's Amended Petition to Compel Arbitration and to Stay Action Pending Completion of Arbitration Proceeding - HEARING REQUIRED.

The Court is inclined to enforce the arbitration clause based on Plaintiff's stipulation on some overlapping claims in a different, related case. Because this is based on post-briefing events, I need the parties' assistance.

Procedural issues: The pleadings in this case concluded with an authorized sur-reply by Plaintiff on August 12, 2026.

In case CV-26-4037 involving the same parties, the matter has been ordered stayed by stipulation. This order was made by Judge David Hood on August 19, 2026 based on a stipulation signed on August 18 by Plaintiff's counsel in that case, Starpoint, LC.

That case covers discrimination and retaliation-based claims and also alleged a violation of Business and Professions Code section 17200. Further, the complaint asks for unpaid wages as a portion of damages.

Plaintiff expressly agreed that the Collective Bargaining Agreement controlled and that agreement had a mandatory arbitration clause, and that Plaintiff had signed an arbitration agreement on March 8, 2018. This stipulation appears binding on Plaintiff and defeats many of his arguments in this case.

In case CV-26-5535, Plaintiff is represented on nearly identical claims by MKEQUITYLEGAL, P.C. That case is facing a potential demurrer.

In this case, CV-26-1562, Plaintiff is represented by The Myers Law Group, APC and the operative First Amended Complaint is primarily a wage and hour complaint.

Plaintiff's election to arbitrate in case CV-26-4037 is binding on those claims, including the alleged violation of Business and Professions Code section 17200 and unpaid wages. Further, his concession of being bound by the agreements probably estops him from arguing that the agreement was not made or is void.

If the Court reached the merits, the likely outcome would be the same.

A party seeking to compel arbitration bears the burden of proving, by a preponderance of the evidence, the existence of a valid arbitration agreement. (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413 [moving party must establish agreement to arbitrate].) If that burden is met, the opposing party bears the burden of proving a defense to enforcement, such as unconscionability. (Pinnacle Museum Tower Assn. v. Pinnacle Market Dev. (US), LLC (2012) 55 Cal.4th 223, 236 [burden shifts to opposing party to prove defense].)

Here, a valid agreement to arbitrate appears to exist.

Plaintiff's argument in the surreply that the terms of the arbitration cannot be discerned given Defendant's unusual choices throughout this litigation might carry more weight had there not been an agreement to arbitrate under agreed-upon terms in CV-26-4037.